

Attachment 1 – Statement of Work

United States Department of
Agriculture (USDA)
Agricultural Research Service
(ARS)
Administrative and Financial
Services (AFM)
Information Technology
Services Division (ITSD)
QIAGEN IPA (Ingenuity
Pathway Analysis) Analysis
Match Explorer
LCL Subscriptions and Support

Background

The Clinger-Cohen Act of 1996 established the position of the Chief Information Officer (CIO). The CIO implements the provisions of the Clinger-Cohen Act of 1996 and the Paperwork Reduction Act of 1995 regarding the acquisition, management, and use of information technology (IT) resources; manages United States Department of Agriculture (USDA), Agricultural Research Service (ARS) compliance with the Computer Security Act of 1987, the Federal Information Security Management Act of 2002 (FISMA), Homeland Security Presidential Directive 7 of December 17, 2003, and Presidential Decision Directive 63 of May 22, 1998, *Critical Infrastructure Protection*; and implements the Office of Management and Budget Circular A-130, *Management of Federal Information Resources*. The CIO serves as the principal advisor to the Agency on information resources and information systems management and strives to improve the operations and service delivery of ARS's programs through the effective use of technology. The CIO directs ARS's Office of the CIO (OCIO), which supports these activities.

Scope

The United States Department of Agriculture (USDA), Agriculture Research Service (ARS), National Center for Cool and Cold Water Aquaculture (NCCCWA), Beltsville Human Nutrition Research Center (BHNRC), Animal Biosciences and Biotechnology Laboratory (ABBL), and Animal Genome Improvement Laboratory (AGIL) requires contractor assistance: 1. Acquire software licenses for 5 subscriptions. 2. Provide updates and access to new software versions. 3. Provide 24x7 technical support by virtual meeting, email, and/or phone.

Tasks or Requirements

The contractor shall perform all work described in this Statement of Work in accordance with all applicable Federal, State, and local laws, regulations, codes, technical specifications, manufacturers guidelines, USDA, REE, and the ARS mission.

Period of Performance

Base: one year after award 2026-2027

Opt. Yr. 1: 2027 through 2028

Opt. Yr. 2: 2028 through 2029

Opt. Yr. 3: 2029 through 2030

Opt. Yr. 4: 2030 through 2031

Delivery

The service shall be delivered electronically.

Deliverable	Submitted to:	Due Date:
QIAGEN IPA (Ingenuity Pathway Analysis) Analysis Match Explorer LCL Subscriptions and Support		Within 10 Days of Award

Data Rights

In accordance with Office of Management and Budget Memorandum M-16-12, Category Management Policy 16-1: Improving the Acquisition and Management of Information Technology: Software Licensing, USDA must maintain an inventory of its software licenses, including pricing data. The contractor shall provide line-item pricing data on all software licenses provided to USDA at award and/or during performance of the contract/order. The attachment entitled "Software Template Line-Item Pricing" must be completed and provided to the Contracting Officer's Representative within 10 days of award, or within 10 days of activation for licenses provided after the award date.

Information Sensitivity

The contractor shall adhere to the Privacy Act, Title 5 of the U.S. Code, Section 52a and applicable agency rules and regulations. The Contractor Program Manager shall ensure that all contract personnel take the required USDA Privacy training.

1. Section 508 – Accessibility of Information and Communications Technology

- (a) This SOW/PWS is subject to Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d) as amended by the Workforce Investment Act of 1998 (P.L. 105-220). Specifically, subsection 508(a)(1) requires that when the Federal Government procures Information and Communications Technology (ICT)¹, the ICT must allow Federal employees and members of the public with disabilities comparable access to and use of information and data provided to Federal employees and members of the public without disabilities.
- (b) The ICT accessibility standards as 36 CFR Part 1194 were developed by the Architectural and Transportation Barriers Compliance Board (also known as the Access Board) and apply to contracts, task orders, and indefinite quantity contracts on or after June 25, 2001.
- (c) Each Information and Communications Technology (ICT) product or service furnished under this contract shall comply with the Information and Communications Technology Accessibility Standards (36 CFR 1194), as specified in the contract, at a minimum. If the Contracting Officer determines any furnished product or service is not in compliance with the contract, the Contracting Officer will promptly inform the Contractor in writing. The Contractor shall, without charge to the Government, repair or replace the non-compliant products or services within a period of time specified by the Government in writing. If such repair or replacement is not completed within the time specified, the Government shall have the following recourses:

¹ Please note that the term Information and Communications Technology (ICT) is synonymous with Electronic and Information Technology (EIT), the previously used term. The term ICT will be used to meet international standards after the release of the Section 508 Refresh.

- 1) Cancellation of the contract, delivery, or task order, purchase or line item without termination liabilities; or
 - 2) In the case of custom Information and Communications Technology (ICT) being developed by a contractor for the Government, the Government shall have the right to have any necessary changes made or repairs performed by itself or by another firm for the non-compliant ICT, with the contractor liable for reimbursement to the Government for any expenses incurred thereby.
- (d) The contractor must ensure that all ICT products and services that are less than fully compliant with the accessibility standards are provided pursuant to extensive market research and are the most current compliant products or services available to satisfy the contract requirements.
- (e) For every ICT product or service accepted under this contract by the Government that does not comply with 36 CFR 1194, the contractor shall, at the discretion of the Government, make every effort to replace or upgrade it with a compliant equivalent product or service, if commercially available and cost neutral, on either a contract specified refresh cycle for the product or service, or on a contract effective option/renewal date, whichever shall occur first.

Section 508 Compliance

The contract shall comply with the standards, policies, and procedures below. In the event of conflicts between the referenced documents and this SOW/PWS, shall take precedence.

Section 508 Accessibility Standards

- 1) 29 U.S.C. 794d (Rehabilitation Act as amended)
- 2) 36 CFR 1194 (Section 508 standards)
- 3) <http://www.access-board.gov/sec508/508standards.htm> (Section 508 standards)
- 4) FAR 39.2 (Section 508)
- 5) <http://www.ocio.usda.gov/document/departmental-regulation-4030-001> (USDA standards, policies, and procedures for Section 508)

In addition, all contract deliverables are subject to these standards.

All web content or communications materials produced, regardless of format (text, audio, video, etc.), must conform to the applicable Section 508 standards to allow Federal employees and members of the public with disabilities comparable access to and use of information and data provided to Federal employees and members of the public without disabilities. All contractors (including sub-contractors) and consultants responsible for preparing or posting content must comply with the applicable Section 508 accessibility standards and, where applicable, those set forth in the referenced policy or standards document above. Remediation of any materials that do not comply with the applicable provisions of 36 CFR Part 1194 as set forth in the SOW/PWS shall be the responsibility of the contractor or consultant. The following Section 508 provisions apply to the products and/or services identified in this SOW/PWS:

- 36 CFR Part 1194.21 provisions a-l
- 36 CFR Part 1194.22 provisions a-p
- 36 CFR Part 1194.23 provisions a-k[4]
- 36 CFR Part 1194.24 provisions a-e
- 36 CFR Part 1194.25 provisions a-j[4]
- 36 CFR Part 1194.26 provisions a-d

- 36 CFR Part 1194.31 provisions a-f
- 36 CFR Part 1194.41 provisions a-c

The following Section 508 provisions apply for software development material identified in this SOW/PWS.

For **software development, software applications, and operating systems** the Contractor/Developer shall comply with the following standards, policies, and procedures:
Section 508 Accessibility Standards

- 1) 29 U.S.C. 794d (Rehabilitation Act as amended)
- 2) 36 CFR 1194 (Section 508 standards)
 - a. 36 CFR Part 1194.21 provisions a-l
 - b. 36 CFR Part 1194.31 provisions a-f
 - c. 36 CFR Part 1194.41 provisions a-c

For **web-based applications** (intranet, internet information and applications, 16 rules), the Contractor/Developer shall comply with the following standards, policies, and procedures:
Section 508 Accessibility Standards

- 1) 29 U.S.C. 794d (Rehabilitation Act as amended)
- 2) 36 CFR 1194 (Section 508 standards)
 - a) 36 CFR Part 1194.21 provisions a-l
 - b) 36 CFR Part 1194.22 provisions a-p
 - c) 36 CFR Part 1194.31 provisions a-f
 - d) 36 CFR Part 1194.41 provisions a-c

For **telecommunication** products and services the Contractor/Developer shall comply with the following standards, policies, and procedures:

- Section 508 Accessibility Standards
- 1) 29 U.S.C. 794d (Rehabilitation Act as amended)
 - 2) 36 CFR 1194 (Section 508 standards)
 - a) 36 CFR Part 1194.23 provisions a-k
 - b) 36 CFR Part 1194.31 provisions a-f
 - c) 36 CFR Part 1194.41 provisions a-c

For **video and multimedia applications** (including training materials), the Contractor/Developer shall comply with the following standards, policies, and procedures:
Section 508 Accessibility Standards

- 1) 29 U.S.C. 794d (Rehabilitation Act as amended)
- 2) 36 CFR 1194 (Section 508 standards)
 - a. 36 CFR Part 1194.24 provisions a-e
 - b. 36 CFR Part 1194.31 provisions a-f
 - c. 36 CFR Part 1194.41 provisions a-c

For **self-contained and closed products**, the Contractor/Developer shall comply with the following standards, policies, and procedures:

- Section 508 Accessibility Standards
- 1) 29 U.S.C. 794d (Rehabilitation Act as amended)
 - 2) 36 CFR 1194 (Section 508 standards)

- a. 36 CFR Part 1194.21 provisions a-l
- b. 36 CFR Part 1194.25 provisions a-j
- c. 36 CFR Part 1194.31 provisions a-f
- d. 36 CFR Part 1194.41 provisions a-c

For **desktop and portable computers**, the Contractor/Developer shall comply with the following standards, policies, and procedures:

Section 508 Accessibility Standards

- 1) 29 U.S.C. 794d (Rehabilitation Act as amended)
- 2) 36 CFR 1194 (Section 508 standards)
 - a. 36 CFR Part 1194.21 provisions a-l
 - b. 36 CFR Part 1194.26 provisions a-d
 - c. 36 CFR Part 1194.31 provisions a-f
 - d. 36 CFR Part 1194.41 provisions a-c

For **help desk and other support services**, the Contractor/Developer shall comply with the following standards, policies, and procedures:

Section 508 Accessibility Standards

- 1) 29 U.S.C. 794d (Rehabilitation Act as amended)
- 2) 36 CFR 1194 (Section 508 standards)
 - a. 36 CFR Part 1194.31 provisions a-f
 - b. 36 CFR Part 1194.41 provisions a-c

If the help desk or other support services include **training**, Contractor/Developer must also comply with the following standards, policies, and procedures in addition to 36 CFR Part 1194.31 provisions a-f and 36 CFR Part 1194.41 provisions a-c:

- a. 36 CFR Part 1194.21 provisions a-l (installable and web-based training)
- b. 36 CFR Part 1194.22 provisions a-p (web-based software)

All Information and Communications Technology (ICT) subject to the 36 CFR 1194 standards will have a Section 508 usability and acceptance test where Section 508 compliance will be validated. This test must be administered by a Federal Section 508 Testing Center.

All maintenance for Information and Communications Technology that requires upgrades, modifications, installations, and purchases will adhere to the Section 508 standards and 36 CFR 1194.

WCAG 2.0 Compliance

The Contractor shall comply with the standards, policies, and procedures below. In the event of conflicts between the referenced documents and this SOW/PWS the SOW/PWS shall take precedence.

Custom ICT Development Services

When Contractor provides custom ICT development services pursuant to this contract, Contractor/Developer shall ensure the ICT fully conforms to the applicable Revised 508 Standards prior to delivery and before final acceptance.

Installation, Configuration, and Integration Services

When Contractor/Developer provides installation, configuration, or integration services for software pursuant to this contract, the offeror shall not install, configure, or integrate the software in a way that reduces the level of conformance with the applicable Revised 508 standards.

Maintenance, Upgrades, and Replacements

Contractor/Developer shall ensure maintenance upgrades, substitutions, and replacements to software pursuant to this contract do not reduce the original level of conformance with the applicable Revised 508 standards at the time of the contract award.

Hosting Services

When providing hosting services for electronic content provided by the agency, Contractor/Developer shall not implement the hosting services in a manner that reduces the existing level of conformance of the electronic content with applicable Revised 508 standards. Throughout the life of the contract, the agency reserves the right to perform testing on a vendor or contractor's hosted solution to verify conformance with this requirement.

Validation for ICT Items

When purchasing ICT where 1) 508 validation is not possible prior to award, 2) when ICT will be changed after the award, or 3) ICT will be hosted in a third-party environment, Contractor/Developer shall test and validate the ICT solution for conformance to the Revised 508 standards, in accordance with the requirement testing methods, as defined by the agency. Throughout the life of the contract, the agency reserves the right to perform testing to verify conformance with this requirement.

Documentation

Contractor/Developer shall maintain and retain full documentation of the measures taken to ensure compliance with the applicable requirements, including records of any testing or demonstrations conducted.

Conformance Reporting

Prior to acceptance, Contractor/Developer shall provide an Accessibility Conformance Report (ACR) for each ICT item that is developed, updated, configured for the agency, and when product substitutions are offered. The ACR should be based on the latest version of the [Voluntary Product Accessibility Template \(VPAT\)](#) provided by the [Information Technology Industry Council \(ITI\)](#). To be considered for award, an ACR must be submitted for each ICT item, and must be completed according to the instructions provided by ITI.

When the contractor is required to perform testing to validate conformance to the agency's accessibility requirements, Contractor/Developer shall provide a Supplemental Accessibility Conformance Report (SAR) that contains the following information:

- Accessibility test results based on the required test methods.
- Documentation of features provided to help achieve accessibility and usability for people with disabilities.
- Documentation of core functions that cannot be accessed by persons with disabilities.
- Documentation on how to configure and install the ICT item to support accessibility.
- When an ICT item is an authoring tool that generates content (including documents, reports, videos, multimedia productions, web content, etc.), provide information on how the ICT item enables the creation of accessible electronic content that conforms to the Revised 508 Standards, including the range of accessible user interface elements the tool can create.

- Before final acceptance, the contractor shall provide a fully working demonstration of the completed ICT Item to demonstrate conformance to the agency's accessibility requirements. The demonstration shall expose where such conformance is and is not achieved.

Before acceptance, the agency reserves the right to perform independent testing to validate that the ICT solution provided by the contractor conforms to the applicable Revised 508 standards.

1. Non-Compliance

Before final acceptance of any ICT item, including updates and replacements, if Contractor/Developer claims its products or services satisfy the applicable Revised 508 standards specified in the contract vehicle, and the contracting officer determines that any furnished ICT item is not in compliance with such requirements, the contracting officer will promptly inform Contractor/Developer in writing of the non-compliance. Contractor/Developer shall, at no cost to the agency, repair or replace the non-compliant products or services within the period specified by the contracting officer.

2. Compliance with Internet Protocol Version (IPv6)

This contract involves the acquisition of Information Technology (IT) that uses Internet Protocol (IP) Technology. In order to comply with OMB Memorandum M-05-22, Transition Planning for Internet Protocol Version 6 (IPv6) issued on August 2, 2005, the contractor agrees that: (1) all deliverables that involve IT that uses IP (products, services, software, etc.) will comply with IPv6 standards set forth in the USGv6 Profile (NIST Special Publication 500-267) and interoperate with both IPv4 and IPv6 systems and products; and (2) it has IPv6 technical support for such deliverables. If the contractor plans to offer a deliverable that involves IT that is not compliant with these requirements, the contractor agrees to obtain the Contracting Officer's approval before starting work on the deliverable.